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However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Ruling

1. Plaintiff’s Motion for Order Approving Settlement Pursuant to the California Labor Code Private Attorney General Act is granted.
2. The Court will execute the proposed order lodged on December 5, 2026, and will request that the Clerk of the Court attach this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.
4. No appearance is required on July 22, 2026.

13. 9:00 AM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS AND 2ND AMENDED COMPLAINT**
FILED BY: INTEX MARKETING LTD.
TENTATIVE RULING:

The hearing on this motion is continued to January 20, 2027 at 9:00 a.m. in Department 16 by stipulation of the parties. No appearance is required on July 22, 2026.

14. 9:00 AM CASE NUMBER: C23-03218
CASE NAME: CALDELARIA GARCIA VS. BELL-CARTER OLIVE PACKING COMPANY, INC.
***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**

FILED BY: GARCIA, CALDELARIA

TENTATIVE RULING:

Summary

Plaintiff Candelaria Garcia ("Plaintiff") seeks approval of a PAGA Settlement Agreement (the "PAGA Settlement") entered into with Defendant Bell-Carter Olive Packing Company, Inc. ("Defendant" or "Bell-Carter") (together, the "Parties") in full resolution of the above-captioned litigation (the "Action"). The Motion is unopposed and is **granted**. No appearance is required at the hearing on July 22, 2026.

Background

The proposed PAGA Settlement represents a non-reversionary, all-inclusive gross settlement of \$150,000.00 to resolve claims for civil penalties pursuant to the California Private Attorneys General Act (Labor Code sections 2698, et seq.). The settlement was reached following a full day of mediation with experienced neutral Michael Ludwig, Esq., and subsequent negotiations between Plaintiff and Bell-Carter. The settlement resolves Plaintiff's PAGA claims alleging Defendant's failure to pay all minimum and overtime wages, failure to provide meal periods and authorize rest breaks, failure to indemnify necessary business expenses, failure to timely pay final wages at termination, and failure to provide accurate itemized wage statements.

The PAGA Settlement defines the aggrieved employees or "PAGA Members" as all current or former non-exempt/hourly-paid employees employed by Defendant in California from December 17, 2022 through the date the number of pay periods reaches no more than 9,474, or the date the Court signs an order approving the settlement, whichever is earlier (the "PAGA Period"), with the Parties anticipating an end date of May 3, 2025. The Covered Claims include any and all claims for PAGA penalties of whatever kind or nature which occurred during the PAGA Period that were alleged, or that reasonably could have been alleged, including claims for alleged violations of various Labor Code provisions. Upon Defendant's funding of the Total Settlement Amount, Plaintiff, on behalf of herself and the State of California, and all PAGA Members, shall fully release the Released Parties from the Covered Claims.

The Total Settlement Amount of \$150,000.00 shall be allocated as follows: The PAGA Payment totals \$78,121.80, which shall be distributed with seventy-five percent (\$58,591.35) paid to the California Labor and Workforce Development Agency (LWDA) and twenty-five percent (\$19,530.45) distributed to the estimated 229 PAGA Members. PAGA Members will receive their proportional share via check accompanied by a letter explaining the settlement, with checks remaining valid and negotiable for one hundred eighty (180) calendar days from issuance. Any uncashed checks following this period shall be forwarded to the State of California's unclaimed property fund in the name of the respective PAGA Member. The LWDA has been provided notice of the proposed settlement and has not made any objections thereto.

PAGA Counsel, Moon Law Group, PC, seeks approval of attorneys' fees in the amount of one-third of the Total Settlement Amount, estimated at \$53,333.33. This fee award represents compensation for

counsel's work in prosecuting this action, including investigation of the claims, litigation, and settlement negotiations. The requested fee is consistent with the contingent risk undertaken by counsel and the results achieved for the LWDA and PAGA Members.

PAGA Counsel also seeks reimbursement of actual litigation costs up to a maximum of \$25,000.00, with costs currently incurred totaling \$17,128.20. These costs include \$8,280.00 for Plaintiff's statistician expert, which was necessary to assist in assessing Defendant's realistic exposure; \$7,000.00 for Plaintiff's share of the mediation fee (half of the total \$14,000.00 mediation cost); and \$1,848.20 for filing fees, service fees, and other litigation expenses necessarily and reasonably incurred, including the \$75.00 PAGA filing fee and \$1,494.53 initial complaint filing fee.

The Parties have jointly appointed Phoenix Class Action Administration Solutions as the neutral Settlement Administrator to administer this settlement. The Settlement Administrator shall be paid administration costs not to exceed \$6,000.00, with the Administrator having submitted a not-to-exceed bid of \$4,750.00 for its fees and expenses. The Settlement Administrator shall be responsible for distributing the PAGA Members' share of the settlement and ensuring uncashed funds are properly forwarded to the State's unclaimed property fund.

Defendant shall fund the Total Settlement Amount within ten (10) calendar days after the Effective Date by payment to the Settlement Administrator. The settlement is non-reversionary, meaning all funds paid into the settlement shall be distributed regardless of the number of claims submitted or cashed. The settlement reflects the product of arm's-length negotiations between experienced wage and hour counsel, following sufficient investigation to evaluate the relative strength and value of the PAGA claims, and represents a reasoned compromise based on the risks, expense, complexity, and likely duration of further litigation.

The Court is requested to: (1) approve the PAGA Settlement Agreement; (2) appoint Moon Law Group, PC as PAGA Counsel and approve the requested PAGA Counsel Fees and Costs; (3) appoint Phoenix Class Action Administration Solutions as the Settlement Administrator and approve the Settlement Administration Costs; (4) approve the release of the Released PAGA Claims by the LWDA and the PAGA Members; (5) direct consummation of the PAGA Settlement pursuant to its terms and provisions; (6) dismiss the Action with prejudice and enter Judgment; and (7) retain jurisdiction over the Action and over all Parties to the fullest extent necessary to enforce and effectuate the terms and intent of the PAGA Settlement.

Analyses

PAGA allows an "aggrieved employees" to bring a civil action on behalf of himself or herself, other aggrieved employees and the State to recover civil penalties which, outside of PAGA, only the LWDA can collect from an employer. Cal. Labor Code § 2699(a). The settlement of a PAGA action requires court approval. See Cal. Labor Code § 2699(l)(2). In reviewing a PAGA settlement, the Court need only ensure that "a negotiated resolution is fair to those affected." *Williams v. Sup. Ct.*, (2017). 3 Cal.5th 531, 549 The court's focus is not the monetary amount which aggrieved employees or the State stand to receive, but on whether the total amount achieves PAGA's objective - "to incentive private parties to recover civil penalties for the government that otherwise may not have been assessed and

collective by overburdened state enforcement agencies.” See *Ochoa-Hernandez v. CIADERS Foods, Inc.*, 2010 WL 1340777 (N.D. Cal. Apr. 2, 2010) (citing *Arias v. Sup. Ct.*, (2009)). 46 Cal.4th 969, 986). Penalties recovered under PAGA are, in part, to “be distributed to the [LWDA] for enforcement of labor laws [] and for education of employers and employees about their rights and responsibilities under this code [] to supplement the funding to the agency for those purposes.” See Cal. Labor Code § 2699(j).

Because a PAGA claim is effectively considered a law enforcement action, it does not have to meet the requirements of a class action. *Arias, supra*, 46 Cal. 4th at 980-988 (affirming lower court’s holding that “plaintiff need not satisfy class action requirements” to assert a PAGA claim). Moreover, because PAGA claim is “a statutory action for penalties brought as a proxy for the State,” “there is no need to protect absent employees’ due process rights[.]” *Williams, supra*, 3 Cal.5th at 546. “PAGA does not make other potentially aggrieved employees parties” to the action and no “due process concerns arise under PAGA because absent employees do not own a personal claim for PAGA civil penalties and whatever personal claims the absent employees might have for relief are not at stake.” *Id.* at 546-47. 17 Accordingly, “[u]nnamed employees need not be given notice of the PAGA claim, nor do they have the ability to opt-out of the representative PAGA claim.”

However, since this matter proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

After review of the proposed settlement, the applicable statutory and decisional authorities, the Court finds good cause to grant this motion. Good cause appearing, the Court makes the following orders.

Attorneys' Fees

Plaintiffs’ counsel seek attorneys’ fees of \$53,333.33 representing one-third of the total settlement amount, relying on the common fund doctrine. Similarly, litigation costs in the amount of \$8,280.00. Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable. Good cause, therefore appearing, the Court makes the following orders and ruling.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify approval. The motion is **granted**.
2. The Court will execute the proposed order lodged on October 10, 2026, and will request that the clerk of the court attach a copy of this ruling to the proposed order.
3. The Court orders Counsel to schedule a compliance hearing no later than six months from the date of this hearing. Counsel is ordered to file a compliance statement no later than five (5) court days before the hearing. The Court may vacate the hearing upon review of the compliance statement.

4. The Court will retain jurisdiction over this action and the Parties to enforce the terms of the PAGA Settlement agreement.
5. No appearance is required at the hearing on July 22, 2026.

15. 9:00 AM CASE NUMBER: C24-01022

CASE NAME: MICHAEL RAY VS. SIMPSON STRONG-TIE CO., INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**

FILED BY: RAY, MICHAEL

TENTATIVE RULING:

Summary

This tentative ruling is for Lines 15 and 16. Plaintiff Michael Ray ("Plaintiff") individually and on behalf of all others similarly situated moves for Final Approval of the Class Action Settlement ("Settlement") with Defendant Simpson Strong-Tie Co., Inc. ("Defendant"). Plaintiff also seeks approval of its motion for attorney's fees, costs and service award. These motion are **granted**. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

The Court granted preliminary approval of this Settlement on October 23, 2025, provisionally certifying the class and directing notice to the more than 5,000 Settlement Class Members. The Settlement resolves claims against Defendant Simpson Strong-Tie Co., Inc. arising from a data security incident and operates on a claims-made basis with no aggregate cap. Defendant has agreed to pay all Notice and Administrative Expenses, the Fee Award and Expenses, and Service Awards. The Settlement Class consists of 5,746 individuals who were provided notice achieving a 90.67% reach rate through postcard mailings following address verification and skip tracing procedures. No timely exclusion requests or objections were received, and 198 non-duplicate claims were submitted by the February 19, 2026 deadline, representing 3.45% of the class.

The Settlement provides three categories of benefits to eligible claimants.

- First, Settlement Class Members may claim up to \$500 for documented ordinary out-of-pocket losses, including reimbursement for expenses incurred as a direct result of the Data Security Incident, fees for credit reports or credit monitoring, and attested lost time.
- Second, claimants may seek up to \$5,000 for documented extraordinary out-of-pocket losses fairly attributable to the Data Security Incident.
- Third, all Settlement Class Members are eligible to receive two years of Identity Theft Protection and/or Credit Monitoring, including credit monitoring at all three major credit reporting agencies. Additionally, Defendant has implemented and will continue to maintain data security enhancements valued at over \$957,000, including deployment of a Data Security Posture Management System, Zero Trust Endpoint Detection Security application, and increased phishing awareness training and testing.

The Settlement Administrator, Simpluris, Inc., shall process all approved claims and distribute Settlement Payments via mailed checks or electronic fund transfer within sixty days of the Effective Date or within thirty days of claim approval, whichever is later. The Settlement Administrator's total